

ELIZABETH II



1970 CHAPTER lxxxiii

An Act to confer further powers on the Oxfordshire County Council in relation to lands and highways and the local government, improvement and finance of the county; to make further provision for the superannuation of employees of the Council and local authorities in the county; and for other purposes.

[17th December 1970]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to lands and highways and for the local government, improvement and finance of the administrative county of Oxford and that the powers of the county council should be enlarged and extended as provided in this Act:

(2) It is expedient to make further provision for the superannuation of officers and servants of the Council and local authorities in the county and for the benefit of their dependants and to amend the enactments relating thereto:

(3) It is expedient that the other provisions contained in this Act should be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 1933 c. 51. have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Oxfordshire County Council Act 1970.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—
 Part I.—Preliminary.
 Part II.—Lands.
 Part III.—Highways and streets.
 Part IV.—Fire protection and public safety.
 Part V.—Finance.
 Part VI.—Superannuation.
 Part VII.—Miscellaneous.
 Part VIII.—General.

Interpretation. 3.—(1) In this Act the several words and expressions (other than those defined in subsection (2) of this section) to which meanings are assigned by sections 90, 110 and 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act, unless otherwise expressly enacted or unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

1933 c. 51. “the Act of 1933” means the Local Government Act 1933;
 1936 c. 49. “the Act of 1936” means the Public Health Act 1936;
 1937 c. 68. “the Act of 1937” means the Local Government Superannuation Act 1937;
 1953 c. 25. “the Act of 1953” means the Local Government Superannuation Act 1953;
 1959 c. 25. “the Act of 1959” means the Highways Act 1959;
 “the Act of 1962” means the Town and Country Planning Act 1962;
 1962 c. 38. “the Act of 1967” means the Road Traffic Regulation Act 1967;
 1967 c. 76. “claimed county road” has the same meaning as in the Act of 1959;
 “the clerk” means the clerk of the Council;
 “the Council” means the county council of the county;

- “ the county ” means the administrative county of the county of Oxford;
- “ the county fund ” means the county fund of the Council;
- “ county road ” means a highway which by virtue of section 21 of the Act of 1959 or some other enactment is a county road in the county;
- “ daily fine ” means a fine for each day on which an offence is continued after conviction thereof;
- “ district ” means a borough or an urban or rural district in the county;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any order, byelaw or regulation from time to time in force within the county;
- “ highway authority ” means—
 - (a) in the case of a trunk road, the Secretary of State or, with his consent, the authority who are for the time being acting as his agent under the Act of 1959 with respect to that road; and
 - (b) in the case of a county road in the county, except a claimed county road, and in the case of any other highway for the time being maintained by the Council, the Council;
- “ land ” includes land covered by water and any interest in land or any easement or right in, to or over land;
- “ local authority ” means the council of a district;
- “ magistrates’ court ” has the same meaning as in the Magistrates’ Courts Act 1952; 1952 c. 55.
- “ officer ” includes servant;
- “ operational land ” in the case of the Post Office has the same meaning as in paragraph 93 (4) of Schedule 4 to the Post Office Act 1969 and, in the case of any other statutory undertakers, has the same meaning as in the Act of 1962 as originally enacted; 1969 c. 48.
- “ owner ” in relation to any premises, means a person, other than a mortgagee not in possession, who, whether in his own right or as trustee or agent for any other person, is entitled to receive the rack-rent of the premises or, where the premises are not let at a rack-rent, would be so entitled if the premises were so let;
- “ the police authority ” means the Thames Valley Police Authority or any other police authority of which the Council are a constituent member;
- “ road ” has the same meaning as in the Road Traffic Act 1960; 1960 c. 16.

PART I
—cont.

“ Secretary of State ” means—

(a) for the purposes of Part IV (Fire protection and public safety) of this Act, the Secretary of State for the Home Department;

(b) in all other cases, the Secretary of State for the Environment;

“ statutory undertakers ” means any company, body or person authorised by any enactment to supply electricity, gas or water and the Post Office;

“ verge ” includes land situate between two carriageways and part of a street which is not a carriageway, footway or cycle track;

“ voluntary organisation ” means any organisation not carried on for profit, not being an organisation carried on by a public authority.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, amended or varied by, or by virtue of, any subsequent enactment including this Act.

PART II

LANDS

Suspension of
restrictive
covenants.

4.—(1) If the Council—

(a) acquire land by agreement; or

(b) enter into an agreement to acquire land; or

(c) have acquired land by agreement before the passing of this Act; or

(d) appropriate (whether before or after the passing of this Act) land which has been previously acquired by agreement;

for a purpose for which they are for the time being authorised to acquire land compulsorily, or could under any enactment be authorised to acquire the land compulsorily, and the land is, before such acquisition or agreement to acquire, affected by any restriction arising under covenant or otherwise (other than a restriction imposed by any enactment or a restriction or condition imposed in pursuance of the provisions of section 23 of the Industrial Development Act 1966) as to the user thereof or the building thereon, the Council may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

1966 c. 34.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Council shall—

(a) in four successive weeks publish in one or more local newspapers circulating in the locality in which the land

referred to in the resolution is situated a notice stating that the resolution has been passed, describing the land and naming a place within the locality where a copy of the resolution and map may be inspected and specifying the period (not being less than three months from the date of the first publication of the notice) within which, and the manner in which, objections to the suspension of the restriction can be made;

- (b) on or before the date of the first publication of the said notice serve by registered post or the recorded delivery service a copy of the said notice on every person who appears to them, after diligent inquiry, to be entitled to the benefit of the restriction to which the resolution relates; and
- (c) on or before the date of the first publication of the said notice post a copy or copies of the said notice in a prominent position on the land to which the resolution relates.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the restriction by sending notice of his objection and of the grounds thereof to the appropriate Minister and a copy thereof to the Council within the period specified in the notice.

(5) If any objection is duly made as aforesaid and is not withdrawn, the resolution shall be of no effect unless and until it is confirmed by the appropriate Minister, and before confirming the resolution the appropriate Minister shall cause a public local inquiry to be held into the proposed suspension of the restriction and, after considering the report of the person who held the inquiry, may confirm the resolution.

(6) (a) If objection is duly made as aforesaid and the appropriate Minister confirms the resolution, the restriction shall be suspended on and after such date as the appropriate Minister shall determine, not being earlier than the date on which the Council acquire or appropriate the land.

(b) If no objection is duly made under subsection (4) of this section, or if all objections so made are withdrawn, the appropriate Minister may, if he thinks fit, confirm the resolution and the restriction shall be suspended on and after such date as the appropriate Minister shall determine, not being earlier than the date on which the Council acquire or appropriate the land.

(7) If in the opinion of the Council there is doubt whether any such land as is mentioned in subsection (1) of this section is affected by any restriction to which that subsection relates or whether any such restriction is enforceable the Council may—

- (a) in four successive weeks publish in one or more local newspapers circulating in the locality in which the land

PART II
—cont.

is situated a notice describing the land and stating generally the effect of this subsection and of subsections (8) and (9) of this section specifying the time (not being less than three months from the date of the first publication of the notice) within which and the manner in which any person claiming to be entitled to enforce a restriction against the use of the land may intimate such claim to the Council and shall produce to them his documents of title in support of his claim;

(b) on or before the date of the first publication of the notice referred to in paragraph (a) of this subsection serve by registered post or the recorded delivery service a copy of the said notice on every person who they consider after reasonable inquiry may reasonably be expected to claim to be entitled to the benefit of a restriction against the land; and

(c) on or before the date of the first publication of the notice referred to in paragraph (a) of this subsection post a copy or copies of that notice in a prominent position on the land.

(8) If any person is entitled to the benefit of a restriction against the land but fails to comply with the requirements of such notice, the restriction shall, so far as concerns such person and his successors in title, be deemed to have been suspended under the foregoing provisions of this section, but without prejudice to any claim for compensation under subsection (9) of this section.

1965 c. 56.

(9) The Council shall pay compensation in accordance with the provisions of section 10 of the Compulsory Purchase Act 1965 in respect of any entitlement to the benefit of a restriction suspended under the powers of this section and loss suffered in consequence thereof, and the amount of the compensation shall, in case of dispute, be determined in accordance with the Land Compensation Act 1961.

1961 c. 33.

(10) Any restriction suspended under the powers of this section shall be unenforceable so long as the Council are the owners of the land to which the restriction relates, or, if the Council convey the land to any body for any of the purposes of the Education Acts 1944 to 1968 so long as the land is used by that body for the purposes of those Acts, and, if compensation is paid by the Council under subsection (9) of this section in respect of the suspension of a restriction relating to the building upon, or use of, land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person:

Provided that if such compensation is paid on the basis that the land may be used for a particular purpose, the restriction shall,

after any subsequent conveyance or disposition of the land to a person otherwise than for any of the purposes of the Education Acts 1944 to 1968, remain unenforceable only so long as the land is used for that purpose.

PART II
—cont.

(11) If the Council dispose of any land to which the restriction suspended under the powers of this section relates, they shall, in two successive weeks, publish notice thereof in one or more local newspapers circulating in the locality in which the land is situated.

(12) Nothing in this section shall apply to—

- (a) any restriction arising under a covenant granted to the National Trust for Places of Historic Interest or Natural Beauty restricting the development or use of land;
- (b) any restriction imposed by covenant or otherwise restricting the development or use of land or imposing on the owner thereof any obligation or duty contained in any deed, wayleave, agreement or other instrument and imposed by or enuring for the benefit of the National Coal Board for the purpose of safety;
- (c) any restriction arising under the Water Resources Act 1963 c. 38. 1963 or under any agreement expressed to be made pursuant to that Act;
- (d) any restriction for—
 - (i) the protection of, or for securing access to, or preventing interference with the use of, operational land or apparatus of any statutory undertakers or local authority, or the British Railways Board or the Conservators of the River Thames; or
 - (ii) the prevention of pollution of water which any statutory water undertakers are for the time being authorised to take;contained in any deed, wayleave agreement or other instrument;
- (e) any restriction expressed to be in favour of the Conservators of the River Thames in respect of their statutory functions relating to river pollution.

(13) In this section “the appropriate Minister” means the Minister of the Crown having power to authorise the compulsory purchase of the land for the purpose for which the Council have acquired or agreed to acquire that land and “local authority” has the same meaning as in the Act of 1933.

5. Where land owned by the Council (being land acquired by the Council to provide a site for a voluntary school) is conveyed by the Council to the trustees of a voluntary school in pursuance of the provisions of the Education Act 1946, any covenants or restrictions affecting the use of such land as aforesaid

Covenants or restrictions affecting certain land. 1946 c. 50.

PART II
—cont.

shall be enforceable against the trustees or governors or managers of the voluntary school only to the extent that they were enforceable against the Council prior to the conveyance referred to in this section.

Compensation
may be in
land.

6.—(1) The Council, when they are required by any enactment to make compensation to any person interested in any lands, may by agreement with such person make such compensation wholly or partly in works, land or money, but in the case of land for the alienation of which the consent of any government department is required, only with such consent.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any land or interest in land from them under this section from any rent, covenants, restrictions, reservations, terms or conditions made payable by or contained in any conveyance, lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Council or any persons from or through whom the Council have derived title to it.

Power as to
re-housing.

7.—(1) The Council may enter into and carry into effect agreements with any local authority for the provision by that authority of houses for the purpose of providing for the re-housing of persons displaced from any land acquired by the Council under any enactment, and any such agreement may provide for the making of contributions by the Council towards the whole or any part of the expense thereby incurred by the local authority.

(2) In this section “local authority” means the council of any administrative county, county borough or county district.

Provision of
substituted
sites.

8. The power of the Council to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners, lessees and occupiers of land that may be acquired under any enactment.

Disposal of
land.

9. In respect of land acquired by the Council under any enactment for the benefit or improvement or development of the county section 165 of the Act of 1933 shall have effect with the omission of the words “and which is not required for the purpose for which it was acquired or is being used”.

Compulsory
acquisition
of
easements.

10.—(1) The Council by means of an order made by the Council and submitted to and confirmed by the confirming authority may be authorised to create in favour of the Council in, over or under any land which under any enactment the Council may be authorised to acquire compulsorily any easement

or other right in, over or under or in relation to such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any land or building owned or occupied, or intended to be acquired or occupied, by the Council for the purposes of any of their undertakings, powers or duties.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in, over or under or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

(3) The Acquisition of Land (Authorisation Procedure) Act 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the said Act of 1946 and as if—

(a) the expression “ compulsory purchase of land ” in the said Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

(b) paragraphs 9 and 10 of Schedule 1 to the said Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within section 8 of the Compulsory Purchase Act 1965.

1965 c. 56.

(5) In this section “ confirming authority ” means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

11.—(1) The Council may provide and maintain, or contribute to the cost of providing and maintaining, recreational, social and welfare facilities for their employees.

Recreational and other facilities for employees.

(2) For the purposes aforesaid, the Council may—

(a) erect or maintain buildings;

(b) make such charges as they think fit for the use of facilities provided under this section;

(c) make regulations for the management of such premises.

PART II
—cont.

(3) No power conferred upon the Council by this section shall be exercised in such a manner—

- (a) as to be at variance with any trust subject to which any land or building is held, managed or controlled by the Council without an order of the High Court or of the Charity Commissioners or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or
- (b) as to contravene any covenant or condition (other than a covenant or condition which was subsisting immediately before the date of the gift or lease to the Council) subject to which a gift or lease of any land or building has been accepted by or granted to the Council without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

Undertakings
and agreements
binding
successive
owners.

12.—(1) Every undertaking given by or to the Council to or by the owner of a legal estate in land and every agreement made between the Council and any such owner being an undertaking or agreement—

- (a) given or made under seal either on the passing of plans or otherwise in connection with the land; and
- (b) expressed to be given or made in pursuance of this section;

shall be binding not only upon the Council and any owner joining in the undertaking or agreement but also upon the successors in title of any owner so joining and any person claiming through or under them.

1925 c. 22.
1926 c. 11.

(2) Such an undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926.

(3) Any person upon whom such an undertaking or agreement is binding shall be entitled to require from the Council a copy thereof.

PART III

HIGHWAYS AND STREETS

Exercise by
Council of
powers with
respect to
county roads.

13.—(1) The provisions of the Act of 1959 mentioned in subsection (2) of this section shall apply in relation to—

- (a) any county road (not being a claimed county road); and
- (b) any road constructed by the Council or by some other person by agreement with them which, when completed, is intended to become a county road;

and shall have effect as if the Council were the local authority in whose area the road is situated.

(2) The provisions of the Act of 1959 hereinbefore referred to are the following:—

Section 74 (which empowers a local authority to fix a frontage line where a building in a street is taken down in order to be rebuilt or altered);

Subsection (7) of section 131 (which provides that certain dangerous projections from buildings are to be deemed obstructions to safe and convenient passage along streets);

Section 132 (which relates to doors and other things opening outwards into streets); and

Section 144 (which makes provision for the fencing of dangerous land adjoining a street).

(3) The Council shall not in the exercise of the powers of this section perform or discharge any of the functions under the provisions mentioned in subsection (2) of this section in any borough or urban district except at the request of, and by agreement with, the local authority of the district and, during the continuance of any such agreement, the functions to which the agreement relates shall cease to be exercisable by the local authority in relation to the road to which the agreement applies:

Provided that nothing in this subsection shall prevent the Council from exercising any powers conferred on them by any other enactment.

(4) Any agreement made under the provisions of this section may relate to any one or more roads in a district.

14.—(1) No person (other than a person selling, offering or exposing for sale or depositing for sale any food, goods, provisions, articles or things at any market or fair for which a toll, stallage or rent is payable) shall provide, erect, place or use any shed, hut, shelter, booth, stall, shop or other erection, whether on wheels or not, or any vehicle or any container used, with or without a stall, on the verge of any road to which this section applies, or on any common land, unenclosed moorland or other unenclosed land of whatsoever description adjacent to, and within 15 yards of, a road to which this section applies, for the purpose of selling, offering, depositing or exposing for sale any food, goods, provisions, articles or things whatsoever, other than newspapers.

Sale of food
and articles
on verges,
etc.

(2) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(3) This section applies to roads in the county of any of the following descriptions:—

(a) all trunk roads and roads which are classified as principal roads by the Secretary of State under the Local Government Act 1966;

1966 c. 42.

PART III
—cont.

(b) any other county road, or part of a county road, to which the highway authority may by order apply this section.

(4) (a) An order under subsection (3) of this section shall not be made except with the consent of the Secretary of State:

Provided that if no objections are duly made in accordance with the provisions of this subsection or if any so made are withdrawn the consent of the Secretary of State shall not be required and the order shall have effect without modification.

(b) Before making application for a consent under this subsection, the highway authority shall publish once at least in each of two successive weeks in a local newspaper circulating in the locality in which the road is situated a notice stating the general effect of the order, and stating that within a period specified in the notice (not being less than twenty-eight days from the date of the first publication of the notice) any person may object to the application by sending notice of his objection and of the grounds thereof to the Secretary of State and by sending a copy thereof to the highway authority.

(c) If, before the expiration of the period specified in the notice, any objection to the application is received by the Secretary of State from any person appearing to him to be affected, the Secretary of State shall, before consenting to the order, cause a local inquiry to be held and consider the report of the person who held the inquiry.

(5) The Secretary of State may, in consenting to any order submitted to him for his consent under this section, consent to it in the form in which it was submitted to him or with such modifications as he thinks fit, which may include additions, exceptions or other modifications of any description; but where he proposes to consent to the order with modifications which appear to him substantially to affect the character of the order as submitted to him, he shall, before doing so, take such steps as appear to him to be sufficient and reasonably practicable for informing the highway authority in question and other persons likely to be concerned.

(6) Nothing in this section shall apply to—

(a) any shed, hut, shelter, booth, stall, shop or other erection or any vehicle or any container provided, erected or placed on private property by or with the consent of the owner of such property; or

(b) any building erected or work constructed with the consent of the Secretary of State in pursuance of section 194 of the Law of Property Act 1925 or of any other statutory provision or any scheme made pursuant to a statute; or

(c) the sale of food, goods, provisions, articles or things from a vehicle when in use solely for the purpose of itinerant trading with the occupants of premises adjoining any verge or land to which this section applies.

PART III
—cont.

(7) In this section—

“container” includes any basket, pail, tray, package or receptacle of any kind whether open or closed;

“vehicle” means any vehicle of any description, whether drawn or propelled by mechanical power or not.

15.—(1) Any person with the consent of the Council may, in Milk stands proper and convenient situations in any county road (not being in county a claimed county road) or roadside waste adjacent to such road, roads. provide stands for milk churns and containers:

Provided that the consent of the Council shall not be given to the provision of any stand in any such road or roadside waste in such a situation as to obstruct an existing access to any premises abutting on such road.

(2) In giving their consent under this section the Council may attach thereto such terms and conditions as they think fit.

(3) Any person aggrieved by the refusal of the Council to grant consent under this section or by the terms and conditions attached thereto may appeal to a magistrates' court.

(4) (a) Any person who, without the consent of the Council, provides stands for milk churns and containers in any county road (not being a claimed county road) or roadside waste adjacent to such road, shall be guilty of an offence and shall be liable to a fine not exceeding twenty pounds and if the person guilty of the offence does not within two months after conviction remove the stands in respect of which the offence has been committed, the Council may themselves remove the said stands and recover the expense of so doing from the person guilty of the offence.

(b) Any breach of any terms and conditions imposed by the Council under subsection (2) of this section shall be deemed as regards liability to a fine and the other consequences arising under the foregoing paragraph of this subsection equivalent to the provision of stands without the required consent.

(5) In this section “roadside waste” means roadside waste forming part of a county road.

16.—(1) No person shall mix or deposit mortar, cement, Mixing of plaster or any like substance in any county road (not being a mortar in claimed county road) except upon a board or in a receptacle county roads. which will protect the road from such mortar, cement, plaster or substance and will prevent it from being washed into any gully drain or sewer:

PART III
—cont.

Provided that this section shall not apply to the mixing or deposit in any road of mortar or any like substance for the purposes of making up, maintaining, repairing, reinstating, altering or improving a road or any bridge over or under a road.

(2) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding twenty pounds.

Damage to trees, etc., in county roads and in open spaces.

17.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall in any county road (not being a claimed county road), or in any open space to which the public have access adjacent to any such county road—

(a) remove or cut any turf; or

(b) remove, cut or displace any tree, shrub or plant which has been planted for the purpose of improving amenities, or cut or pluck any bud, blossom, flower or leaf of any such tree, shrub or plant.

(2) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding twenty pounds and to the payment of such further amount as appears to the court reasonable compensation for any damage done by such contravention, which last-mentioned amount shall be paid to the Council or to such other person as the court may direct.

(3) In any proceedings under this section in respect of any matter referred to in subsection (1) (b) of this section it shall be a defence for the defendant to show that he did not know, and had no reason to know, that the tree, shrub or plant in question had been planted for the purpose of improving amenities.

(4) Nothing in this section shall—

(a) apply to any open space vested in, or under the control of, a local authority, a board of conservators or the National Trust for Places of Historic Interest or Natural Beauty, or to any land as respects which byelaws have been made under section 90 of the National Parks and Access to the Countryside Act 1949; or

(b) affect any right of statutory undertakers or the British Railways Board to open or break up any street or land in the exercise of any statutory power.

1949 c. 97.

Extension of power to provide public conveniences.

18.—(1) The provisions of subsection (2) of section 87 of the Act of 1936 shall extend so as to authorise the Council to provide public sanitary conveniences in, on or under any land which is adjacent to but which does not form part of a county road or a trunk road in the county and the provisions of subsection (3) of that section shall apply accordingly:

Provided that the powers of this subsection shall not be exercised in relation to a trunk road or in relation to any land acquired by

PART III
—cont.

the Secretary of State in connection with a trunk road under subsection (5) or subsection (6) of section 214 of the Act of 1959, or under section 215 of that Act, without the consent of the Secretary of State.

(2) The Council may enter into an agreement—

- (a) with any person for the provision by him of any public sanitary conveniences which the Council have power to provide; and
- (b) with the owner and occupier of any such premises as are referred to in subsection (1) of section 89 of the Act of 1936 or the owner and occupier of any premises comprising a petroleum filling station as defined in the Petroleum (Consolidation) Act 1928, for the provision 1928 c. 32. by him, in addition to any sanitary conveniences provided for the use of persons employed at or frequenting such premises, of additional sanitary conveniences for the use of members of the public;

and any such agreement may contain such incidental and consequential provisions as appear to the Council to be necessary or expedient for the purposes of the agreement, including in particular, but without prejudice to the generality of the foregoing, provision for—

- (i) a contribution, whether by way of a loan or otherwise, by the Council towards the reasonable expenses incurred by any person in providing and maintaining sanitary conveniences for the use of members of the public;
- (ii) the charges to be made to persons making use of any such conveniences, other than urinals;
- (iii) the regulation of the use of any such conveniences.

19. Between midnight and 7 o'clock in the morning the Street provisions of any order made by the Council under or having cleansing. effect by virtue of the Act of 1967 prohibiting the driving of vehicles on any road specified in any such order otherwise than in a specified direction and any provisions applicable to the direction to be followed by vehicles using roads provided with dual carriageways shall not apply to any mechanically propelled and operated street cleansing vehicle when engaged in the cleansing of any street.

PART IV

FIRE PROTECTION AND PUBLIC SAFETY

20.—(1) This section applies to—

- (a) any building of which part (hereafter in this section referred to as “the storage part of the building”) is

Parts of buildings used for storage of flammable substances.

PART IV
—cont.

used, or intended to be used, for the storage for the purposes of sale or trade of any substance to which this section applies and part is used, or intended to be used, as a habitable room or a place in which any person works, if the part used, or intended to be used, as a habitable room or a place in which a person works communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;

(b) any substance which is highly flammable:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored other than—

1922 c. 35.
1928 c. 32.

- (i) one or more of the substances to which the Celluloid and Cinematograph Film Act 1922 or sections 1 and 2 of the Petroleum (Consolidation) Act 1928 apply; or
- (ii) any substance which does not, when tested by a method approved by the Secretary of State, give off a flammable vapour at a temperature of less than 90 degrees Fahrenheit (32 degrees Centigrade) and which is stored in securely closed metal containers in good condition and containing not more than five gallons each; or
- (iii) any substance which does not, when tested by a method approved by the Secretary of State, give off a flammable vapour at a temperature of less than 90 degrees Fahrenheit (32 degrees Centigrade) and which is stored in separate glass or glazed earthenware vessels securely stoppered and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed twenty-five gallons.

(2) If the Council are of the opinion that the storage for the purposes of sale or trade of any substances to which this section applies in any part of a building to which this section applies in the county is—

(a) in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building as a habitable room or as a place where any person works; or

(b) in such manner as to be liable to cause fire or explosion; they may by notice require the occupier of any part of the building to provide or fit (as the case may be) within such reasonable period as may be specified in the notice—

- (i) appropriate means of giving warning, in the case of fire, to persons occupying the building and for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;

PART IV
—cont.

- (ii) means of ready escape in case of fire from the storage part of the building and any other part of the building, being a part comprising a habitable room or a place in which any person works if that other part communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;
- (iii) notices in or on the storage part of the building indicating the existence of danger from fire.

(3) The occupier of any building who—

- (a) by reason of a restriction affecting his interest in the building, is unable to execute works for the purpose of complying with a notice given by the Council under subsection (2) of this section; or
- (b) considers that the owner of the building, or any other person having an interest therein, should contribute towards the cost of the execution of works as aforesaid, and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with the notice or, as the case may be, to direct the owner of the building, or any other person who appears to the court to have an interest therein, to contribute towards the cost of such works as aforesaid such an amount as appears to the court, in all the circumstances of the case, to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(4) Upon compliance with a notice under subsection (2) of this section the Council shall forthwith issue to the person to whom the notice was given a certificate of such compliance.

(5) (a) If, after a certificate of compliance with a notice under subsection (2) of this section has been granted by the Council—

- (i) any material extension or material structural alteration of the building to which the certificate relates is intended to be made; or
- (ii) it is intended materially to increase the storage in the said building of any substance to which this section applies;

the occupier of any part of the building shall not less than twenty-one days before any such extension or alteration is made or any such storage is increased give notice of such

PART IV
—cont.

intention to the Council who may serve a further notice varying any requirement made under subsection (2) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements the Council shall amend the certificate or grant a new certificate in respect of the building, but if anything required to be provided in accordance with a further notice served under this subsection is not provided within such reasonable time as may be specified in the notice, the Council may cancel the certificate previously granted in respect of the building.

(6) All means of escape, fire alarms and means of extinguishing fire provided or fitted (as the case may be) under the requirements of sub-paragraphs (i) and (ii) of paragraph (b) of subsection (2) of this section shall be properly maintained and kept free from obstruction.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936, as applied by this Act, the provisions of this section shall be provisions which it is the duty of the Council to enforce.

(8) (a) An authorised officer of the Council may, in respect of any premises which he has entered in pursuance of the powers conferred by the said section 287, purchase and test samples of any substance stored on such premises for the purposes of sale or trade in order to ascertain whether or not such substance is a substance to which this section applies.

(b) The result of any test of a sample taken by an authorised officer of the Council by virtue of this section shall not be admissible as evidence in any legal proceedings under this section, including an appeal under subsection (9) of this section, unless the following requirements have been complied with, that is to say, the said officer shall forthwith after taking the sample notify the occupier of the building of his intention to have it tested and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container, which shall be sealed up and marked, and shall—

- (i) deliver one part to the occupier of the building;
- (ii) retain one part for future comparison; and
- (iii) if he thinks fit to have a test made, submit one part to be tested.

(9) (a) Any person aggrieved by a requirement of the Council under subsection (2) of this section, or by a variation of a requirement under subsection (5) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;

(ii) that the requirement or variation is unreasonable in character or extent;

(iii) that the period specified in the notice is not reasonably sufficient for the purpose of complying with the requirements in the notice.

(b) Any person aggrieved by the refusal of the Council to grant or amend a certificate under this section or by the cancellation of a certificate under subsection (5) of this section may appeal to a magistrates' court.

(10) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(11) In this section "building" where used in relation to the storage of substances therein includes the curtilage of the building and "habitable room" includes a room or place to which the public resort.

(12) Nothing in this section shall apply to premises which are subject to the Factories Act 1961, the Offices, Shops and Railway Premises Act 1963, the Licensing Act 1964 or the Private Places of Entertainment (Licensing) Act 1967, or regulations made under those Acts. 1961 c. 34.
1963 c. 41.
1964 c. 26.
1967 c. 19.

21.—(1) The Council may, in relation to any substance to which this section applies— Prescription
of signs to
be used on
certain
buildings.

(a) prescribe standard uniform signs or symbols or warning notices in a form approved by the Secretary of State clearly indicating the nature of the substance and the existence of danger from fire;

(b) by notice require the occupier of any part of a building used for the manufacture or storage of the substance to affix, within such reasonable time as is specified in the notice, and thereafter to keep fixed in a conspicuous position or positions in or on the part of the building used for such manufacture or storage, the appropriate sign, symbol or notice.

(2) This section applies to any substance likely to involve special hazard to persons engaged in operations for fire-fighting purposes.

(3) If any person fails to comply with the requirements of the Council under this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(4) In this section "fire-fighting purposes" has the same meaning as in the Fire Services Act 1947. 1947 c. 41.

PART IV
—cont.Firemen's
switches for
luminous
tube signs.

22.—(1) This section applies to apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding 650 volts, or other equipment so designed, and of the transformers required to raise the voltage so as to operate the signs or equipment, not being apparatus which is inside a building and is attended while in operation.

(2) As from the coming into operation of this section apparatus to which this section applies in the county shall be provided with a cut-off switch on the low-voltage side of the transformer, and the switch shall be so placed, and coloured or otherwise marked, as to satisfy such reasonable requirements as the Council may impose to secure that it shall be readily accessible to, and recognisable by, firemen.

(3) Not less than fourteen days before work is begun to install apparatus to which this section applies, the consumer shall give notice to the Council showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

(4) Where apparatus to which this section applies has been installed before the date of the coming into operation of this section, the consumer shall, not less than fourteen days before that date, give notice to the Council—

- (a) in the case of apparatus already provided with a cut-off switch on the low-voltage side of the transformer, showing where the switch is placed and how it is coloured or otherwise marked;
- (b) in the case of apparatus not already provided with such a cut-off switch as aforesaid, showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the Council as required by subsection (3) or subsection (4) of this section, the proposed or, as the case may be, actual position, colouring or marking of the switch shall be deemed to satisfy the requirements of the Council unless, within ten days from the date of the service of the notice, if the notice is served under subsection (3) of this section, or within twenty-one days from the date of the service of the notice, if the notice is served under subsection (4) of this section, the Council have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers shall for the purposes of this section be deemed to satisfy the requirements of the Council.

(7) A person aggrieved by a counter-notice served by the Council under subsection (5) of this section may appeal to a magistrates' court and the court, if it allows the appeal, shall order the cancellation of the counter-notice.

(8) The owner or the occupier of premises where apparatus is installed which does not comply with subsection (2) of this section shall be guilty of an offence.

(9) A person who fails to give notice as required by subsection (3) or subsection (4) of this section shall be guilty of an offence.

(10) A person guilty of an offence under this section shall be liable to a fine not exceeding twenty pounds and, in the case of an offence under subsection (8) of this section, to a daily fine not exceeding two pounds.

(11) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations 1937 or any regulations that may be made under section 60 of the Electricity Act 1947.

1947 c. 54.

(12) This section shall not apply to apparatus installed on or in premises, or any part of premises, in respect of which a licence under the Cinematograph Acts 1909 and 1952 or the Theatres Act 1968 is for the time being in force:

1968 c. 54.

Provided that where any luminous tube sign to which, but for this subsection, this section would apply is proposed to be fitted on or in any such premises, the owner or occupier thereof shall, before such apparatus is fitted, give notice under subsection (3) of this section to the Council informing them of the position in which it is proposed to place the cut-off switch.

(13) This section shall come into operation in the county at the expiration of a period of two months beginning with the date on which this Act is passed.

(14) (a) The Council shall, as soon as may be after the passing of this Act, cause public notice to be given of the effect of the foregoing provisions of this section by advertisement in two or more newspapers circulating in the county, and otherwise in such manner as the Council think fit.

(b) In any proceedings it shall be presumed, unless the contrary is proved, that the provisions of this subsection have been complied with.

23.—(1) A fire officer authorised in writing by the chief fire officer of the Council may, on giving (except when there are grounds for suspecting that there may be a risk requiring immediate remedy) not less than forty-eight hours' notice to the secretary of a club in the county registered under the Licensing Act 1964, on production of his authority, enter and inspect as regards any matter affecting fire risks the premises occupied by the club at any reasonable time on such day as may be specified in the notice; but the chief fire officer shall not so authorise a fire officer unless in his opinion special reasons exist making it necessary that the premises should be inspected for the proper discharge of his functions in relation to any matter affecting fire risks.

Fire precautions in registered clubs.

1964 c. 26.

PART IV
—cont.

(2) Any person obstructing a fire officer in the exercise of the power conferred by this section shall be liable to a fine not exceeding twenty pounds.

PART V

FINANCE

Power to
borrow.

24.—(1) The Council may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of the borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by subsection (1) (a) of this section except in compliance with any order for the time being in force under section 1 of the

1946 c. 58.

25. In addition to the modes of borrowing prescribed by the Act of 1933, the Council may raise money—

Power to
Council to
raise money
by issue of
bills.

- (1) for any purpose for which the Council are authorised to borrow;
- (2) in anticipation of the receipt of revenues for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “Oxfordshire County Council bills” and in this section referred to collectively as “bills” and separately as “a bill”) subject to and in accordance with the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill;
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable;
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:

- (d) Bills shall be issued under the authority of a resolution passed by the Council or a committee of the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:
- (e) The Council may make regulations providing for—
- (i) the preparation and form and the mode of issue, payment and cancellation of bills;
 - (ii) the issue of a new bill in lieu of one defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;
 - (iv) the giving of a proper discharge on the payment of a bill; and
 - (v) amending or revoking any regulations previously made or deemed to have been made under this paragraph:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
- (i) the sum of one million pounds; or
 - (ii) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council;
- whichever is the greater:
- (h) Subject to the provisions of the last preceding paragraph the Council may renew a bill at maturity:
- (i) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills:
- (j) In this section the expression “revenues” has the same meaning as in section 218 of the Act of 1933 and “signature” includes a facsimile of a signature by whatever means reproduced.

PART V
—cont.

Amendment
of power to
issue bonds.
1963 c. 46.

26. For the purposes of section 7 (2) of, and paragraph 1 (c) of Schedule 1 to, the Local Government (Financial Provisions) Act 1963—

- (a) bonds issued by the Council under the said Act of 1963 to and held continuously by building societies and persons and bodies of such other classes as the Council may, with the consent of the Treasury, from time to time determine, shall not be deemed to have been issued for a period of less than one year by reason only of the fact that the holder of such a bond has the right to claim premature repayment under a stress clause;
- (b) a bond issued by the Council as aforesaid shall not be deemed to have been issued for a period of less than one year by reason only of the fact that it is issued on the condition that it may at the discretion of the Council be repaid upon the death of the holder or in any other case for the purpose of relieving hardship to the holder.

Power to
raise money
abroad.

27.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall be exercised only with the consent of the Treasury and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there was substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there was substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

Power to
Council to
lend money
to certain
authorities.

28.—(1) The Council may lend to any local authority, upon such terms and conditions as may be agreed, such money as the Council think fit to lend and as the local authority are authorised to borrow, and any money so lent shall be repaid to the Council by the local authority within the period prescribed by the sanctioning authority, or otherwise, for the repayment thereof.

(2) Any agreement under this section may be made by resolutions passed respectively by the Council and by the borrower.

PART V
—cont.

(3) Every sum borrowed by the Council for the purpose of this section shall be repaid within a period to expire not more than one year after that for which the same was lent by them to the borrower.

(4) Where any sum is borrowed by the Council for the purposes of this section it shall be lawful for the Council for such periods as they may think fit to suspend any annual provision required to be made by virtue of any enactment for the time being in force for the repayment of the sum borrowed.

(5) The Council shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Council and the borrower:

Provided that the Council shall ensure, so far as it is reasonably practicable to do so, that, having regard to all the circumstances existing at the time the loan is made, the rate of interest agreed is such that no loss is incurred by the Council in respect of the loan.

(6) All costs, charges and expenses incurred by the Council in respect of any particular loan under this section shall be met by the borrower.

(7) In this section "local authority" means the council of any county district in the county and any other authority having jurisdiction within the county, being a local authority as defined by section 34 of the Local Loans Act 1875, and includes any river authority having jurisdiction within the county and any joint board if all the constituent authorities are such local authorities as aforesaid. 1875 c. 83.

29. Notwithstanding anything in any enactment or in any rule of law or otherwise to the contrary, where it is agreed between the Council and a person at any time entitled to any mortgage granted by the Council to extend the time for the repayment of the principal moneys secured by such mortgage, or to alter the rate of interest payable by the Council on the principal moneys so secured and not repaid, or both to extend such time and to alter such rate of interest, effect may be given thereto by an endorsement in writing under the hand of such person (or in the case of a corporate body, by the duly authorised representative of that body) and of the clerk or his duly authorised representative, endorsed on the deed by which such mortgage was originally granted, and the provisions of any such endorsement shall be Modification of mortgages by endorsement under hand.

PART V
—cont.

deemed to be incorporated in the said deed and shall, as from the date specified in such endorsement, operate and take effect accordingly.

General
insurance
fund.

30.—(1) The Council may establish a fund to be called “ the insurance fund ” with a view to providing a sum of money which shall be available for making good all such losses, damages, costs and expenses as may from time to time be specified in a resolution of the Council (in this section referred to as “ the specified risks ”).

(2) The establishment of an insurance fund under this section shall not prevent the Council from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each financial year after the establishment of the insurance fund the Council shall pay into that fund either—

- (a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Council fully insured in some insurance office of good repute against the specified risks; or
- (b) if the Council insure in some insurance office against the whole or part of all or any of the specified risks such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Council may (if they think fit) discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Council shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount and if at any time the Council reduce the prescribed amount so that there are more moneys in the insurance fund than the sum so prescribed, such moneys shall be transferred to the county fund, and shall be apportioned between the several accounts of that fund in such proportions as the Council consider equitable.

(5) The Council shall provide the yearly payments aforesaid by contributions from the revenue moneys of the county fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking, department or service of the Council which, if the specified risks were insured against in an insurance office, would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary

to meet losses, damages, costs and expenses in respect of the specified risks, all moneys for the time being standing to the credit of the fund shall, unless applied in any other manner authorised by any enactment, be invested in statutory securities, and the interest and other annual proceeds received by the Council in respect of such investments shall be carried to the county fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Council shall in every financial year, so long as the fund is less than the prescribed amount, carry to the credit of that fund out of the revenue moneys of the county fund an amount equal to the interest and other annual proceeds carried to the county fund in pursuance of the last foregoing paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Council in respect of or on investments forming part of the insurance fund and carried to the county fund may be apportioned in the accounts of the Council between the several undertakings, departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) For the purposes of this section the Council may, if they deem it expedient, include in the specified risks, risks of accident to any teacher, caretaker or other person employed in any voluntary school in the county.

(8) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Council in respect of the specified risks in the order of the dates on which such losses, damages, costs or expenses become ascertained, and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses, damages, costs or expenses, the Council may, with the sanction of the Secretary of State, borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the county fund and charged in the accounts of the Council under the separate headings or divisions in respect of such undertakings, departments or services of the Council, and in such proportions as the Council may determine having regard to the risks through which such deficiencies arise.

(9) Any covenant or obligation binding on the Council to insure against any risk shall (except in so far as the terms of such covenant or obligation otherwise specifically provide) be

PART V
—cont.

deemed to be satisfied by a resolution of the Council under subsection (1) of this section and that risk shall be one of the specified risks.

1953 c. 26.

(10) In the event of the insurance fund ceasing to be required to meet losses, damages, costs and expenses in respect of the specified risks, the insurance fund may be carried to and form part of any capital fund established by the Council under section 1 of the Local Government (Miscellaneous Provisions) Act 1953 or (if the Council so determine) shall be applied in such other manner as the Secretary of State may approve towards the discharge of any debt of the Council or otherwise for any purpose for which capital money may properly be applied.

(11) In this section—

(a) “insurance office” means—

(i) an insurance company; or

(ii) an underwriter being a member of an association of underwriters;

(b) “financial year” means a period of twelve months ending on 31st March;

(c) “prescribed amount” means such sum as may from time to time be prescribed by the Council; and

(d) “statutory securities” means any securities in which trustees are for the time being authorised by law to invest trust moneys or in which the Council are by this Act authorised to invest money forming part of the superannuation fund maintained by the Council under Part I of the Act of 1937.

Insurance of
certain
voluntary
assistants.

31.—(1) The Council may enter into a contract with any person whereby, in consideration of payments made by way of premium or otherwise by the Council, that person undertakes to pay to the Council such sums as may be provided in the contract in the event of any voluntary assistant meeting with a personal accident, whether fatal or not, while he is engaged as such, or suffering any disease or sickness, whether fatal or not, as a result of being so engaged.

(2) Any sum received by the Council under any such contract shall, after deduction of any expenses incurred in the recovery thereof, be paid by the Council to, or to the personal representatives of, the voluntary assistant who has suffered the accident, disease or sickness in respect of which the sum is received.

1774 c. 48.

(3) The provisions of the Life Assurance Act 1774 shall not apply to any such contract, but any such contract shall be deemed

for the purposes of the Insurance Companies Act 1958 to be a policy of insurance upon the happening of personal accidents, disease or sickness.

PART V
—cont.
1958 c. 72.

(4) In this section “voluntary assistant” means a person who, at the request of the Council or an authorised officer of the Council, performs any service or does anything, otherwise than for profit or reward, for the purposes of, or in connection with, the carrying out of any of the functions of the Council and includes any officer or member of a voluntary organisation which provides in the county services or facilities of the kind provided by the Council in pursuance of their functions or to which the Council make any financial contribution.

32.—(1) Section 18 of the Act of 1953 in its application to the county shall have effect as if—

- (i) for the expression “to the widow or any other dependant” in subsections (1) and (2) there were substituted the words “to a dependant”;
- (ii) after sub-paragraph (c) of subsection (1) there were inserted the following new sub-paragraph:—

“(d) partly by way of an annuity for the benefit of the widow and partly by way of periodical payments for the benefit of such of the children of the deceased employee who shall for the time being be under the age of twenty-one years:

Provided that the aggregate of the capital value of such annuity and of such periodical payments shall not exceed the amount aforesaid”.

(2) Subsection (1) of the said section 18 (as amended by the last foregoing subsection) shall apply to a dependant of a former employee of the Council who dies within one year after ceasing to be in their employment as it applies to a dependant of an employee who dies whilst in their employment:

Provided that no gratuity shall be granted under this subsection to a dependant of a former employee to whom a gratuity has been granted under subsection (1) of the said section 18.

(3) For the purposes of the said section 18 in its application to the Council a person employed as a teacher in an aided school in the county shall be deemed to be employed by the Council.

33. For the purposes of section 18 of the Act of 1953 in its application to the Council, a person employed in a voluntary school in the county, otherwise than as a teacher, shall be deemed to be employed by the Council and the Council may grant to or in

Gratuities to
non-teaching
staff in
voluntary
schools.

PART V
—cont.

Provided that in this paragraph ‘land’ shall not include land within the county.

7. Upon the security of freehold or leasehold ground rents, land charges or rentcharges.”;

(c) in Part IV (Supplemental) of the said schedule—

(i) paragraphs 1 and 3 were omitted;

(ii) for paragraph 2 there were substituted the following paragraph:—

“2. (a) Not more than one-tenth of the value of all the investments made at any one time in the manner specified in paragraph 1 of Part III of this schedule shall be represented by securities the price of which is not quoted on a recognised stock exchange or quoted on a recognised security market;

(b) For the purpose of this paragraph the value of any investment shall be deemed to be the value of the investment at the time at which it was made”;

(iii) in paragraph 4 after the definition of “ordinary deposits” and “special investment” there were inserted the following definitions:—

“‘quoted on a recognised security market’ in its application to securities not registered in the United Kingdom means that the security has been granted an official quotation or is listed on a recognised security market or that dealing prices on such a market in respect of that security are published not less frequently than once a week;

‘recognised stock exchange’ in its application to the United Kingdom means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act 1958 or the Belfast Stock Exchange;

‘recognised security market’ in its application to securities not registered in the United Kingdom means a stock exchange, an association of stock and share dealers or an over-the-counter market recognised as a market or association in which dealings in the country concerned normally take place.”

(2) (a) Notwithstanding anything in the Act of 1961, the Council may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to the Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that—

PART V
—cont.

- (i) no such moneys as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the superannuation fund; and
- (ii) no such moneys so invested in the manner specified in paragraphs 4, 5 and 6 of Part III of the said schedule as so amended shall equal or exceed one-quarter of the total value of the superannuation fund.

(b) For the purposes of this subsection, the value of any investment belonging to the superannuation fund shall be deemed to be the value of the investment at the time at which it was made.

(3) All costs, charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund or otherwise in relation thereto may be paid by the Council out of such fund.

(4) The provisions of this section shall have effect notwithstanding anything in subsection (3) of section 21 of the Act of 1937.

(5) In this section—

“ the Act of 1961 ” means the Trustee Investments Act 1961; 1961 c. 62.

“ the superannuation fund ” means the superannuation fund maintained by the Council under Part I of the Act of 1937.

36.—(1) Where property is to be held on trust for the sole benefit of a person or persons to whom this section applies, the Council shall have power to act as a trust corporation as respects that trust for the purposes of the Law of Property Act 1925, the Settled Land Act 1925, the Trustee Act 1925, the Administration of Estates Act 1925 and the Supreme Court of Judicature (Consolidation) Act 1925. Council to be a trust corporation. 1925 c. 20. 1925 c. 18. 1925 c. 19. 1925 c. 23. 1925 c. 49.

(2) This section applies to any child for the time being in the care of the Council under the provisions of any enactment and any person to whom paragraph (a) of subsection (1) of section 21 of the National Assistance Act 1948 applies and for whom the Council are responsible for providing accommodation in accordance with that section or would be responsible if care and attention were not otherwise provided by the Secretary of State for Health and Social Security or by an organisation referred to in section 30 of the said Act of 1948. 1948 c. 29.

PART V
—cont.

(c) after the word “increase” there were inserted the words “or reduction”;

and as if, in subsection (4), the definition of “local authority” included the Council, for the definition of “local authority houses” there were substituted the words “‘local authority houses’ are houses of the local authority”, and after the word “increase” there were inserted the words “or reduction”.

PART VI

SUPERANNUATION

Interpretation
of Part VI,
etc.

42.—(1) In this Part of this Act, except as otherwise expressly provided or unless the context otherwise requires, words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings and—

“death grant” and “transfer value” have in relation to a contributor the meanings assigned to them respectively by the Regulations of 1954;

“contributor” means a contributor to the fund as respects whom the Council are the employing authority;

“the fund” means the superannuation fund maintained by the Council under Part I of the Act of 1937;

“the principal Acts” means the Local Government Superannuation Acts 1937 to 1953;

“the Regulations of 1954” means the Local Government Superannuation (Benefits) Regulations 1954;

“return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to or in respect of him by way of interest on the amount of the contributions returned to him;

“superannuation benefits” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

(2) Without prejudice to the provisions of section 44 (Transfers of employment) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the passing of this Act subject to the extensions, modifications and applications of the said Acts and regulations contained in this Act.

Benefits in
certain cases
of premature
retirement.

43.—(1) Where, after the passing of this Act, the employment of a contributor who has attained the age of fifty-five years and completed ten years’ service is terminated in the interests of efficiency before he has attained the age of sixty-five years, he shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor if not later than one month after ceasing to hold his employment he notifies the Council in writing that he does not wish this subsection to apply to him.

PART VI
—cont.

(2) Where, after the passing of this Act, a contributor who has attained the age of fifty-five years and completed twenty-five years' service, but has not attained pensionable age, terminates his employment at his own request, superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection he may, by notice given to the Council in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection and any rights to which he is entitled thereunder shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Council otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person, who has become entitled to a superannuation benefit by virtue of subsection (2) of this section, dies before any payment on account of such benefit has been made to him, as from the date of his death, the like benefits shall be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that, where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of "service" in subsection (1) of section 40 of the Act of 1937 whether or not any payment has been made to him on account thereof.

(5) For the purposes of section 16 of the Act of 1953 and of any rules made thereunder a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

PART VI
—cont.

(6) In this section “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having otherwise than under this section attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954, as the case may be.

Transfers of
employment.

44.—(1) The Council may, in accordance with the provisions of a scheme made by them for the purposes of this section—

(a) as respects any contributor who ceases or has ceased to hold employment under the Council in order to enter an employment (in this paragraph referred to as “the new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment under the Council:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment under the Council from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts and the regulations made thereunder as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State and the Secretary of State may approve any such scheme either with or without modifications after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

PART VI
—cont.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force, may make any amendments or modifications of that superannuation scheme that may be desirable to facilitate the operation of any scheme made by the Council under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subparagraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in paragraph (b) of that subsection.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948 or 1948 c. 33. by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

45.—(1) Subject to the provisions of subsection (4) of this section, subsection (2) of this section applies to employees—

(a) who are contributory employees for the purposes of the Local Government Superannuation Acts 1937 to 1953; or (b) who are employed in reckonable service within the meaning of the Teachers' Superannuation Act 1967; or (c) who are firemen participating in the Firemen's Pension Scheme; or (d) who by virtue of the provisions of rule 3 of the Superannuation (Policy and Local Government Schemes) Interchange Rules 1948 and 1955 are not subject to the provisions of the Local Government Superannuation Acts 1937 to 1953;	Exclusion of certain remuneration and service for superannuation purposes. 1967 c. 12.
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and who are employed whole-time by the Council, a magistrates' courts' committee, a probation committee, the managers or governors of a voluntary school, a local valuation panel or any voluntary organisation, undertakers or other body approved by the Secretary of State and who participate in the benefits of the fund.

(2) The salary, wages, fees and other payments paid or made (whether before or after the passing of this Act) to an employee

PART VI
—cont.

to whom this subsection applies in respect of any part-time employment (not being employment the duties of which may be performed during the hours which such employee is normally required to devote to his ordinary whole-time employment) by the Council or any other authority or body the employees of which participate in the benefits of the fund—

- (a) as an instructor or other employee performing duties at, or for the purposes of, an evening institute or for the purposes of evening classes; or
- (b) as a warden of, or other employee performing duties at, or for the purposes of, a youth centre; or
- (c) as a civil defence instructor; or
- (d) in any other capacity for the performance of duties which are not duties which he may be called upon to perform in his ordinary whole-time employment;

shall not be remuneration within the meaning of the Local Government Superannuation Acts 1937 to 1953, or of any other enactment affecting the superannuation fund maintained by the Council under Part I of the Act of 1937, and the service of any such contributory employee in any such part-time employment shall not be reckoned as service for any of the purposes of those Acts.

(3) Where, before the passing of this Act, any person to whom subsection (2) of this section applies has paid any contribution or contributions to the fund which would not have been so paid if this section had been in force when such contribution or contributions were made, the Council shall repay to such person a sum equal to the amount of such contribution or contributions, together with compound interest thereon calculated to the date of repayment at the rate of three pounds per centum per annum with half-yearly rests.

(4) Subsection (2) of this section shall not apply to any such person as is referred to in subsection (3) of this section unless, within six months after the passing of this Act, he gives notice in writing to the Council that the said subsection (2) is to apply to him, whereupon that subsection shall apply to him as if this Act had come into force on the date of the receipt by the Council of such notice.

(5) In this section, unless the subject or context otherwise requires, words and expressions to which meanings are assigned in the Local Government Superannuation Acts 1937 to 1953 have the same respective meanings.

46. On the death of any person who is in receipt of a pension or to whom there is due any other payment from the Council as the widow or other beneficiary of a deceased employee of the Council (in this section referred to as "the beneficiary"), the provisions of section 25 of the Act of 1953 shall apply and have effect with respect to the payment of any sum due from the Council to the beneficiary or to the legal personal representative of the beneficiary as those provisions would apply if the beneficiary had been an employee of the Council.

PART VI
—cont.

Extension of
section 25 of
Act of 1953.

47.—(1) Where a local authority maintains a superannuation fund under Part I of the Act of 1937 or is an employing authority in respect of which the appropriate superannuation fund is the fund any such local authority may by resolution adopt all or any of the provisions of the foregoing sections of this Part of this Act, as from such date as may be specified in such resolution and where any provisions are so adopted they shall apply and have effect in relation to that local authority as if—

Adoption by
local
authorities of
sections 42
to 46.

- (a) any reference therein to the Council was a reference to that local authority;
- (b) any reference therein to a contributor was a reference to a contributor to the superannuation fund maintained by that local authority under Part I of the Act of 1937 or to the fund and as respects whom that local authority are the employing authority; and
- (c) any reference therein to the fund was a reference to the superannuation fund maintained by that local authority under Part I of the Act of 1937 or to the fund as the case may require.

(2) In this section "local authority" includes a joint committee of local authorities and a joint committee of local authorities and the Council and "the appropriate superannuation fund" has the same meaning as in the Act of 1937.

48.—(1) If a contributor is dismissed or resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct, the Council may transfer from the fund to the county fund an amount not exceeding the whole, or any part, of any contributions not returned to him or paid to his wife or family under subsection (4) of section 10 of the Act of 1937, or the amount of loss suffered by the Council in consequence of the contributor's offence or misconduct, whichever is the less.

Transfer of
certain sums
from super-
annuation
fund.

(2) If a contributory employee of an employing authority whose employees participate in the benefits of the fund is dismissed, resigns or otherwise ceases to hold employment in consequence of

PART VI
—cont.

an offence of a fraudulent character or grave misconduct by reason of which the employing authority have suffered direct financial loss, the Council shall, on demand from the employing authority, pay to them out of the fund an amount equal to so much of the employee's contributions to the fund as the employing authority have not directed to be returned to the employee or paid to his wife or family, or the amount of such loss suffered by the employing authority in consequence of his offence or misconduct, whichever is the less:

Provided that—

1965 c. 51.

- (a) where a payment in lieu of contributions falls to be made in respect of the employee under the National Insurance Act 1965 the Council shall not under this subsection be required to pay to the employing authority so much of the employee's contributions as amounts to one-half of such payment in lieu of contributions;
- (b) the Council shall not be required to pay to the employing authority so much of the employee's contributions as relates to any period of previous service unless the employing authority have directed that all rights enjoyed by or in respect of him with respect to that period of previous service, being rights under Part I of the Act of 1937 or under the Act of 1953, or any regulations made thereunder, shall be forfeited.

(3) The mayor, aldermen and burgesses of the borough of Banbury (in this section referred to as "the corporation") may by resolution adopt the provisions of this section, as from such date as may be specified in such resolution, and where such provisions are so adopted they shall apply and have effect in relation to the corporation as if—

- (a) any reference therein to the Council and to the county fund was a reference to the corporation and to their general rate fund;
- (b) any reference therein to a contributor was a reference to a contributor to the superannuation fund maintained by the corporation under Part I of the Act of 1937 and as respects whom the corporation are the employing authority; and
- (c) any reference therein to the fund was a reference to the superannuation fund maintained by the corporation under Part I of the Act of 1937.

(4) In this section "contributory employee" and "employing authority" have the same respective meanings as in the Act of 1937.

PART VII

MISCELLANEOUS

49.—(1) The Council may publish or prepare for publication or contribute to the publication of and sell or dispose of works of scholarship, bulletins, journals, periodicals, leaflets and documents of historical or literary interest having a local connection or relating to the functions of the Council. Publication of bulletins, etc.

(2) Nothing in this section shall affect the rights of any person under the law for the time being relating to copyright.

50. The Council may, by agreement with any person, for that person's purposes, use or permit the use of any electronic, mechanical or other equipment for accounting, analytical, statistical or other purposes, or for the printing or reproduction of documents (including equipment for microfilm recording) which the Council have provided for the purposes of all or any of their work, and may provide any facilities and services ancillary to, or necessary or convenient for, the use of the said equipment and make such charges as may be agreed for the use of such equipment and the provision of such facilities or services. Electronic, mechanical or other equipment, etc.

51.—(1) In proceedings under any enactment, a document purporting to be certified by the clerk as a copy of a resolution passed, order made, or report received, by the Council or a committee thereof on a specified date shall be evidence that that resolution, order or report was duly passed, made or received by the Council or committee on that date. Evidence of proceedings, appointments, etc.

(2) In proceedings under any enactment, a document purporting to be certified as aforesaid as a copy of the appointment of, or of an authority given to, an officer of the Council or a committee thereof on a specified date shall be evidence that that appointment was duly made, or that that authority was duly given, by the Council or committee on that date.

(3) In this section "officer" includes an agent.

(4) Section 286 of the Act of 1936, and that section as applied by, or incorporated in, any other enactment, shall cease to apply to the Council and its committees.

PART VII
—cont.Microfilming
of documents.

52.—(1) The Council may make and retain microfilm recordings of documents of the Council.

(2) Notwithstanding anything in any enactment, the Council may destroy any documents of the Council, other than minutes, of which they have made and retained microfilm recordings:

Provided that—

1958 c. 51.

(a) the Council shall not under this section destroy records deposited with them under the Public Records Act 1958, or any other enactment, or acquired or accepted by them under section 2 of the Local Government (Records) Act 1962 or any other enactment or records of a like kind acquired or accepted by them before the commencement of the said Act of 1962;

1962 c. 56.

(b) the Council shall afford a right of access for the public to a microfilm recording of a document which has been destroyed in pursuance of this section equal to the right of access, if any, of the public to the document so destroyed.

(3) An enlargement of a microfilm recording of a document made in pursuance of this section shall be deemed for all purposes to be a copy of that document.

(4) Notwithstanding anything in any enactment or any rule of law, an enlargement of a microfilm recording of a document which has been destroyed in pursuance of this section shall be receivable in evidence for any purpose for which the document would have been receivable in any proceedings in any court in England or Wales if the clerk certifies that—

(a) the document has been destroyed; and

(b) a microfilm recording of the document has been made; and

(c) the enlargement is an enlargement of that microfilm recording.

(5) In this section unless the context otherwise requires—

“document” means the whole or part of a register, book, map, plan or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the Council or any committee of the Council, and references to documents of the Council are references to documents belonging to or permanently in the possession of the Council;

“ microfilm recording ” means a reproduction of a document on film which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye;

“ minutes ” means the minutes of the proceedings of a meeting of the Council or of a committee thereof and includes all reports or other documents appended thereto or incorporated therein.

PART VII
—cont.

53. Notwithstanding anything in paragraph 3 of Part V of Schedule 3 to the Act of 1933, or in any other enactment or rule of law to the contrary, the minutes of the proceedings of meetings of the Council, or of any committee or sub-committee thereof, may be recorded on loose leaves consecutively numbered, the minutes of the proceedings of any meeting being signed, and each leaf comprising those minutes being initialled, at the same or next ensuing meeting of the Council, or, as the case may be, at the same or any subsequent meeting of the committee or sub-committee (as the case may be), by the person presiding thereat, and any minutes purporting to be so signed shall be received in evidence without further proof.

Minutes of
Council
meetings, etc.

54. A resolution of the Council under section 277 of the Act of 1933 may refer either to an officer by name or to the holder or holders of the office or offices stated therein.

Authorisation
of appearance
of Council's
officers in
legal
proceedings.

55.—(1) A committee lawfully authorised by the Council to exercise any powers of the Council under any enactment may, subject to any direction of the Council, appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit, and subject as aforesaid may delegate with or without restrictions or conditions any of their functions to a sub-committee so appointed.

Delegation
of powers
to sub-
committees.

(2) A sub-committee appointed under this section (other than a sub-committee of a committee for regulating and controlling the finances of the Council or of the county) may include persons who are not members of the Council.

(3) A majority of the members of any such sub-committee shall be members of the Council and whenever at any meeting of any such sub-committee the members present thereat do not include a majority of members of the Council any decision of the sub-committee shall have no effect unless it is confirmed by the committee.

(4) Nothing in this section shall authorise the appointment of a sub-committee for any purpose for which any committee of the Council are authorised to appoint a sub-committee under any other enactment.

PART VIII

GENERAL

Protection of
members and
officers from
personal
liability.
1875 c. 55.

56. Section 265 of the Public Health Act 1875 shall apply to the Council as if any reference in that section to the said Act of 1875 included a reference to this Act, and as if any reference in that section to a member of a local authority included a reference to a member of a committee of the Council.

Breach of
conditions
of consent.

57. Where, in pursuance of any enactment, the Council give their approval or consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose, any breach of any such terms or conditions shall, as regards liability to a penalty and other consequences, be deemed equivalent to the execution of the work or the doing of the act or thing without the required approval or consent.

Apportion-
ment of
expenses in
case of joint
owners.

58. Where, under the provisions of any enactment, the Council execute any works of common benefit to two or more buildings belonging to different owners, and those expenses or any part of them are recoverable by the Council, they shall (if no provision is made in the enactment, or in any other enactment applied thereto or incorporated therein, as to the incidence of the expenses so recoverable) be paid by the owners of such buildings in such proportions as shall be determined by the Council or, in case of dispute, by a magistrates' court.

Local
inquiries.

59.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purposes of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 (which relate to the giving of evidence at, and the defraying of the cost of, local inquiries) shall apply in relation to any such inquiry and for that purpose shall have effect as if the expression "department" in that section included any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

1946 c. 31.

(3) In this section "Minister of the Crown" has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

Liability of
directors, etc.

60.—(1) Where an offence under the provisions of this Act mentioned in subsection (2) of this section committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of,

any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

PART VIII
—cont.

(2) The provisions hereinbefore referred to are—

- Section 14 (Sale of food and articles on verges, etc.);
- Section 16 (Mixing of mortar in county roads);
- Section 20 (Parts of buildings used for storage of flammable substances);
- Section 22 (Firemen's switches for luminous tube signs).

(3) In this section "director" in relation to any body corporate established by or under any enactment for the purpose of carrying on, under national ownership, any industry, or part of any industry, or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body.

61. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Council, or, in the case of an offence created by or under section 14 (Sale of food and articles on verges, etc.) or section 16 (Mixing of mortar in county roads) or section 17 (Damage to trees, etc., in county roads and in open spaces) of this Act, a constable. Restriction on right to prosecute.

62.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates' court under this Act (except under the provisions thereof mentioned in subsection (2) of section 63 (Application of general enactments) of this Act) and sections 301 and 302 of that Act shall apply accordingly. Appeals.

(2) Where any requirement, refusal or other decision of the Council against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

PART VIII
—cont.

then, until the time for appealing has expired, or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Council themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

Application
of general
enactments.

63.—(1) The sections of the Act of 1936 mentioned in Part I of the Schedule to this Act shall have effect as if references therein to that Act included reference to this Act, except the provisions thereof mentioned in subsection (2) of this section.

(2) The sections of the Act of 1959 mentioned in Part II of the Schedule to this Act shall have effect as if references therein to that Act included reference to Part III (Highways and streets) of this Act.

(3) The sections of the Act of 1936 mentioned in Part III of the Schedule to this Act shall have effect as if references therein to that Act included a reference to Part III (Highways and streets) and Part IV (Fire protection and public safety) of this Act.

For
protection of
statutory
undertakers.

64. For the protection of statutory undertakers the following provisions shall, unless otherwise agreed in writing between the Council and the undertakers concerned, apply and have effect:—

1882 c. 56.

1878 c. 76.

(1) In this section “apparatus” means mains, pipes or other apparatus and electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by statutory undertakers and includes any telegraphic line (as defined in the Telegraph Act 1878) belonging to or used by the Post Office and any works for the lodging therein of apparatus:

(2) Nothing in the following sections of this Act shall relieve the Council or any person acting with the consent of the Council from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the Council shall so exercise those powers as not to obstruct or render less convenient (so far as is reasonably practicable) the access to any apparatus or operational land:—

Section 15 (Milk stands in county roads);

Section 18 (Extension of power to provide public conveniences):

PART VIII
—cont.

- (3) Nothing in section 20 (Parts of buildings used for storage of flammable substances) of this Act shall apply to any building, or part of a building, by reason only that part of that building is used, or intended to be used, to contain a pressure governor, meter, booster or other apparatus for or in connection with the supply of gas:
- (4) Any difference which may arise between the Council and a statutory undertaker under this section (other than a difference as to the meaning or construction of this section) shall be referred to and determined by a single arbitrator to be appointed by agreement between the parties or in default of agreement by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other party.

65.—(1) Nothing in this Act affects prejudicially any estate, Crown rights, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing herein authorises the Council to take, use, or in any manner interfere with, any land or hereditaments or any rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

(2) Nothing in this section shall prejudice or affect any statutory powers of the Council or highway authority to carry out code-regulated works within the meaning of the Public Utilities Street Works Act 1950 in any highway vested in or maintained by the 1950 c. 39. Secretary of State.

66. Nothing in this Act shall be taken as exempting the Council from the provisions of the Exchange Control Act 1947.

Saving for
Exchange
Control
Act 1947.
1947 c. 14.

67. The costs, charges and expenses preliminary to, and Costs of Act. of and incidental to, the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Council out of the county fund, or out of moneys to be borrowed under this Act.

Section 63.

SCHEDULE

GENERAL ENACTMENTS APPLIED

PART I

SECTIONS OF ACT OF 1936 APPLIED TO THIS ACT, OTHER THAN
PART III

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS OF ACT OF 1959 APPLIED TO PART III OF THIS ACT

Section	Marginal note
269	Summary proceedings for offences.
270	Continuing offences.
273	Notice to be given of right of appeal.
274	Appeals and applications to magistrates' courts.
275	Appeals to quarter sessions from decisions of magistrates' courts.
277	Effect of decision of court upon an appeal.
278	Judges and justices not to be disqualified by liability to rates.
280	Notices, etc., to be in writing; forms of certain documents.
281	Authentication of documents, etc.
282	Service of notices, etc.
283	Reckoning of periods, etc.

PART III

SCH.
—cont.

SECTIONS OF ACT OF 1936 APPLIED TO PARTS III AND IV OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act 1925.

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Oxfordshire County Council Act 1970

CHAPTER lxxxiii

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Division of Act into Parts.
3. Interpretation.

PART II

LANDS

4. Suspension of restrictive covenants.
5. Covenants or restrictions affecting certain land.
6. Compensation may be in land.
7. Power as to re-housing.
8. Provision of substituted sites.
9. Disposal of land.

Section

10. Compulsory acquisition of easements.
11. Recreational and other facilities for employees.
12. Undertakings and agreements binding successive owners.

PART III**HIGHWAYS AND STREETS**

13. Exercise by Council of powers with respect to county roads.
14. Sale of food and articles on verges, etc.
15. Milk stands in county roads.
16. Mixing of mortar in county roads.
17. Damage to trees, etc., in county roads and in open spaces.
18. Extension of power to provide public conveniences.
19. Street cleansing.

PART IV**FIRE PROTECTION AND PUBLIC SAFETY**

20. Parts of buildings used for storage of flammable substances.
21. Prescription of signs to be used on certain buildings.
22. Firemen's switches for luminous tube signs.
23. Fire precautions in registered clubs.

PART V**FINANCE**

24. Power to borrow.
25. Power to Council to raise money by issue of bills.
26. Amendment of power to issue bonds.
27. Power to raise money abroad.
28. Power to Council to lend money to certain authorities.
29. Modification of mortgages by endorsement under hand.
30. General insurance fund.
31. Insurance of certain voluntary assistants.
32. Extension of powers of Council to grant gratuities to widows and dependants of former employees.
33. Gratuities to non-teaching staff in voluntary schools.
34. Receipts in case of minors.
35. Extension of power to invest superannuation fund moneys.

Section

- 36. Council to be a trust corporation.
- 37. Expenses of public ceremonies, entertainment, etc.
- 38. Officers acting as receivers, etc.
- 39. Compensation for injury to or death of employees.
- 40. Recovery of sums paid to officers, etc.
- 41. Notice of alteration of rents without notice to quit.

PART VI

SUPERANNUATION

- 42. Interpretation of Part VI, etc.
- 43. Benefits in certain cases of premature retirement.
- 44. Transfers of employment.
- 45. Exclusion of certain remuneration and service for superannuation purposes.
- 46. Extension of section 25 of Act of 1953.
- 47. Adoption by local authorities of sections 42 to 46.
- 48. Transfer of certain sums from superannuation fund.

PART VII

MISCELLANEOUS

- 49. Publication of bulletins, etc.
- 50. Electronic, mechanical or other equipment, etc.
- 51. Evidence of proceedings, appointments, etc.
- 52. Microfilming of documents.
- 53. Minutes of Council meetings, etc.
- 54. Authorisation of appearance of Council's officers in legal proceedings.
- 55. Delegation of powers to sub-committees.

PART VIII

GENERAL

- 56. Protection of members and officers from personal liability.
- 57. Breach of conditions of consent.
- 58. Apportionment of expenses in case of joint owners.
- 59. Local inquiries.
- 60. Liability of directors, etc.
- 61. Restriction on right to prosecute.

Section

- 62. Appeals.
- 63. Application of general enactments.
- 64. For protection of statutory undertakers.
- 65. Crown rights.
- 66. Saving for Exchange Control Act 1947.
- 67. Costs of Act.

SCHEDULE—General enactments applied—

- Part I—Sections of Act of 1936 applied to this Act, other than Part III.
- Part II—Sections of Act of 1959 applied to Part III of this Act.
- Part III—Sections of Act of 1936 applied to Parts III and IV of this Act.